

PROPERTY	Holding 34 Chartwell
AGENT'S REF	260311-4938
DATE	15 September 2026
PREPARED BY	Maryke Dique

THE PARTIES

SELLER	Estate Late Edeltroud Beck Executors: Lyndall Beck & Victoria Kinsella · Master's Reference 003709/2023
AGENT	Aucor Corporate (Pty) Ltd t/a Aucor Property Irène Marlène Welling-Bekker, duly appointed agent for the executors
PURCHASER	34 Chartwell (Pty) Ltd — Reg. No. 2026/700763/07 8 Flaming Rock Crescent, Mooikloof Estate, Pretoria, 0081
SURETY	Mina Nabil Nassif Tadros — ID 831127 6078 188 Bound as surety and co-principal debtor <i>in solidum</i> ; signed both as director and as surety

THE PROPERTY

DESCRIPTION	Holding 34 Chartwell Agricultural Holdings
PHYSICAL ADDRESS	34 Woburn Avenue, Chartwell
EXTENT	2.7116 ha
TITLE DEED	T57674/1986

THE CONSIDERATION

ITEM	AMOUNT
Purchase price Exclusive of VAT — clause 4.1. If VAT is payable it is added and carried by the purchaser.	R 3 400 000.00
Deposit Paid on signature; held and paid over to the seller's attorneys against registration.	5%
Balance of purchase price Clause 2.3 records the balance as already paid and secured to the seller's attorneys' satisfaction.	Secured
Agent's commission — payable by the purchaser Plus VAT, over and above the purchase price. Earned on acceptance; recorded as paid.	10% + VAT
Default interest on any overdue amount	Prime + 2% p.m.

HOW THE SALE AROSE

The property was sold on auction on **14 April 2026** for R3 400 000.00 to **Passion Java**, who concluded a sale agreement with the seller on the same date (“the original agreement”). This deed substitutes **34 Chartwell (Pty) Ltd** as purchaser on those same terms. The purchaser confirms it is aware of the conditions of the original agreement, accepts that Passion Java's deposit stands to its credit, indemnifies the seller against any claim by Passion Java in respect of that deposit, and cedes the full R3 400 000.00 to the seller as security for payment of the full purchase consideration.

PRINCIPAL TERMS

- **Voetstoets**, and subject to the conditions and servitudes in the title deed, the township conditions and the applicable zoning (clause 14.1).
- **Deceased estate — the sale is subject to the approval of the Master of the High Court.**
- **Occupation and possession pass only on registration of transfer**, not before, unless otherwise agreed in writing; occupational rent then at a rate to be agreed in writing (clause 6).
- **Rates and taxes**: the seller carries all municipal charges up to registration; the purchaser thereafter, and refunds the seller any pro rata amounts paid in advance (clause 7).
- **Transfer costs** — transfer duty, conveyancing fees, disbursements and VAT — are for the purchaser's account, as are all bond registration costs (clause 9.4).
- **Electrical certificate of compliance** is the seller's obligation and at the seller's cost, to be furnished before possession or transfer, whichever is earlier (clause 22).
- **FICA documents** must be delivered within **7 business days** of acceptance (clause 9.6, Annexure 1).
- **Signature of transfer documents** within 7 business days of request by the seller's attorneys; from the 8th day, penalty interest at prime + 2% per month runs on the balance (clause 9.5).
- **Breach**: 7 business days' written notice to remedy, reduced to 48 hours once documents are lodged in the Deeds Office. On the purchaser's default the seller may retain all amounts paid, excluding commission, as *rouwkoop* (clause 15).
- **Nominee**: a nominee may be substituted only by notice delivered by 24h00 on the same day as acceptance, and the original purchaser remains bound as surety (clause 19).
- **Disputes**: mediation and then final arbitration under AFSA, held in Sandton (clause 23).

MATTERS REQUIRING ATTENTION

1 • THE SELLER HAS NOT SIGNED

The acceptance block on page 18 — place, date, the seller's signature and both witnesses — is entirely blank. On the face of the document the purchaser's offer has not been accepted, and no binding sale has come into existence. This should be confirmed and the acceptance properly completed and dated before any further steps are taken, since several periods in the agreement run from the date of acceptance.

2 • AGRICULTURAL TITLE RESTRICTIONS AND UNCONFIRMED CONSENT USE

Clause 14.4 records that the holding must remain designated for agricultural, horticultural or livestock purposes with a minimum extent of 8 565 m². It may not be subdivided, and no portion may be sold, leased or alienated without the prior written approval of the local authority. It may not be held in joint ownership by two or more persons. Residential development is limited to one primary dwelling with necessary outbuildings, subject to a 15.24 m building setback from any road boundary.

Clause 14.5 records that consent use **has been approved but the required payment has not been made, so the approval is not in effect**, and that approved building plans could not be obtained from the seller or the Council. If the purchaser intends to develop or subdivide, this is the material risk in the transaction and should be raised in writing before transfer.

3 • CONDITION REPORT IS HEAVILY QUALIFIED

The condition report at pages 25–26 is completed by hand and signed by Victoria Kinsella for the estate on 12 March 2026. It records that the executors have not lived at the property for many years and cannot disclose latent or patent defects; that the property has stood **vacant since 2022** with maintenance **not up to date**; that there are gravel cracks and that consent use and occupancy certification were still being attended to. Read with the voetstoets clause, the purchaser carries the condition risk.

DRAFTING IRREGULARITIES NOTED

None of these appear to affect the substance of the agreement, but they should be checked against the signed original and raised with the agent if the document is to be relied on:

- Clause 4 runs **4.1** and then **3.2** — the second should read 4.2. • Clause **5.5** refers to “this clause 4” while sitting in clause 5. • Clause **10** is headed Risk and Possession but its sub-clauses are numbered 9.1 to 9.3. • Clause **19** appears twice — Sections 112 and 115 of the Companies Act, and again as Nominee. • Clause 10.1 cross-refers to “clauses 1.1 and 1.3”, which on their content appear to be clauses 2.1 and 2.3. • The trust and close corporation resolutions at pages 20 and 22 each number both items “1.” and “3.” respectively, and are struck through as not applicable.